

for attorney fees, which suggests that Defendant is not objecting to Plaintiff's motion as to attorney's fees. Therefore, the motion shall be granted in part to tax cost as to Item #10.

Otherwise, the motion is denied for reason that Plaintiff makes no valid challenge to the remaining cost items in Defendant's Memorandum of Costs. The initial verification on the memorandum of costs is sufficient to establish the reasonable necessity of the costs being claimed. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Unless objection is made as to the entire memorandum, the motion to tax cost must refer to each item objected to by the same number and order as the corresponding cost item claimed on the memorandum and state why the item is objectionable. (Cal. Rules of Court, rule 3.1700(b)(2).) Here, Plaintiffs merely argue that the motion must be granted because Defendant provides no invoices, receipts, or documentation of any kind to support these charges. However, merely alleging in the motion that the costs are neither necessary nor reasonable without a supporting declaration does not meet the burden of showing that the costs are unnecessary. (See *County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.) Only after the items are properly objected to, then the burden of proof is on the party claiming them as costs. (*Ladas v. California State Auto. Assn.*, *supra*, 19 Cal.App.4th at 774.) Therefore, Plaintiffs have not met their initial burden to shift the burden onto Defendant to provide proof of its costs.

Motion to Tax Costs GRANTED in Part. No award for attorney fees.

Defendant awarded Costs in the amount of \$2,578.20.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL SPECIAL INTERROGATORIES FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: Any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) The party to whom interrogatories have been propounded shall respond in writing under oath to each interrogatory by: (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection to the particular interrogatory. (CCP § 2030.210(a)(1)-(3).) A party propounding interrogatories may move for an order compelling a further response if the party deems that an objection to an interrogatory is without merit or too general. (CCP §2030.300(a)(3).)

Special Interrogatory No. 11 asks the District to state in complete detail, how it learned Plaintiff had taken her son to the Latino Commission. In its initial response the District indicated that the current superintendent, Dr. Esparza learned about the case in April 2024 when she was informed by Beatriz Gonzalez that she was the president of the Latino Commission and CEO Contreras wanted to speak to Esparza. The supplemental

response indicates that Karina Vega told Plaintiff about the Latino Commission. These responses are nonresponsive since they do not provide any information as to the date or circumstances of how the District learned that Plaintiff had taken her son to the Latino Counsel.

Following the informal discovery conference conducted by the court with counsel for the District and counsel for Plaintiff, the court finds that the District made an effort to obtain the information requested through sources under its control, including present employees. To the extent those employees are represented by separate counsel and that attorney has declined to provide information to the District or permit the District to speak with those represented District employees, the court finds a sufficient effort was attempted. However, the District shall clarify in a supplemental response the details of the information provided by Ms. Vega informing Plaintiff about the Latino Commission.

No. 31 requests the identities of all persons hired as teachers between 2017 and present. The District responded by providing a list of the teachers hired during the relevant time period. However, as defined, the “identify” includes information regarding salary, credentials, reasons for termination, race and ethnicity. Plaintiff argues that the comparative data is directly relevant to her FEHA claims of racial discrimination and retaliation. The District contends that it does not track racial data and is not required to create documents that do not exist. It also argues that the information is protected by the right to privacy.

“Plaintiffs in FEHA cases can prove their cases by presenting either direct evidence, such as statements or admissions, or circumstantial evidence, such as comparative or statistical evidence.” (*Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal. App. 5th 663, 687; citing *Hawn v. Executive Jet Management, Inc.* (9th Cir. 2010) 615 F.3d 1151, 1156.) The District does not dispute that comparative data is relevant, but claims that it does not collect data regarding the race or national origin. If a party does not have sufficient personal knowledge to respond fully to an interrogatory, the party shall so state. (CCP § 2030.220(c).) Here, the response does not state that the District is unable to fully respond due to lack of knowledge. As such, the District must provide a further response in compliance with section 2030.220.

The District argues that the information sought is protected by the right to privacy. Employment records are generally covered by the constitutional right of privacy. (*Board of Trustees v. Superior Court* (1981) 119 Cal. App. 3d 516, 528.) Generally, the public interest in preserving confidential personnel information outweighs a private litigant’s interest in obtaining that information. (*Life Technologies Corp. v. Superior Court* (2011) 197 Cal. App.4th 640, 652.) “Even when the balance does weigh in favor of disclosure, the scope of the disclosure must be narrowly circumscribed.” (*Id.*) However, the District did not object on grounds of privacy. As such, the objection was waived.

The District also objected to #31 on the basis that the interrogatory was compound as addressed in CCP 2030.060(f). The court finds that the interrogatory is not in violation of that section but instead describes what should be included in the response. It should be noted that several of Plaintiff’s special interrogatories have similar language directing the District as to what information should be addressed in the response to a single interrogatory (See #s 11 and 32). Additionally, while no declaration was submitted by

Plaintiff in support of additional interrogatories under CCP 2030.050, the District chose to respond to interrogatories that by their argument would have exceeded the 35 questions permitted instead of objecting to answer under CCP 2030.030(c).

No. 32 requests information that the District provided to the College of the Desert regarding Plaintiff and her son. The District responded that it does not have information as Dr. Valentino and Dr. Esparza have not provided any information to the College of the Desert. It asserts that the other individual Defendants are represented by counsel and the interrogatory should be addressed to them. Plaintiff contends that the information is relevant to Jesus Gonzalez's allegations that Plaintiff fraudulently attained admission to the College of the Desert for her son. She argues that the District had an obligation to consult with other Defendants including Jesus Gonzalez and Beatriz Gonzalez. As with No. 11, the court finds that the District made a reasonable inquiry and was unable to obtain any information from the other Defendants represented by outside counsel. No further responses to Special Interrogatory #32 are ordered.

Sanctions:

The court shall impose a monetary sanction against a party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses to a demand for inspection or interrogatory unless it finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust. (CCP §2030.290(c); §2031.310(d).) "Whenever one party's improper actions even if not "willful"—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party." (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal. App. 4th 853, 878.) The court may consider the issue of sanctions where the responding party serves responses after the motion is filed, rendering the motion moot. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 409.)

Here, all requests for sanctions are denied. Plaintiff failed to sufficiently meet and confer despite the District's counsel's representation that he was engaged in mediation and request for additional time. It appears that the Motions were premature since many of the issues were resolved during the additional meet and confer. Thus, the District's position was substantially justified. However, Plaintiff was successful in some of the remaining disputes. As such, the District is not entitled to sanctions.

Plaintiff's Motion to Compel Defendant Coachella Valley Unified School District Further Responses to Special Interrogatories, Set One, GRANTED as to Special Interrogatories #11 and #31.

Defendant CVUSD to provide verified, code compliant responses, without objection, to Special Interrogatories # 11 and #31 within 15 days.

Plaintiff's Motion to Compel Defendant Coachella Valley Unified School District Further Responses to Special Interrogatories, Set One, DENIED as to Special Interrogatory #32.

Plaintiff's request for Sanctions DENIED.

Defendant CVUSD's request for Sanctions DENIED.

Trial Setting Conference to be conducted. Parties are to be prepared to address readiness for a trial date, as well as discuss the OSC re related case CVPS 2605423 Doe v. Contreras.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL REQUEST FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: Pursuant to CCP §2031.010, a party may demand that any other party produce and inspect a document that is in the possession of another party. The demanding party must designate documents by specifically describing individual items or reasonably particularizing categories of documents. (CCP §2031.030(c)(1).) The responding party must respond to each request by either a statement that the party will comply, a representation that the party is unable to comply or an objection. (CCP §2031.210(a)(1)-(3).) If the demanding party determines that the statement of compliance or representation of inability to comply is incomplete or if an objection is without merit, the party may move to compel further responses. (CCP §2031.310(a)(1)-(3).) The moving party must establish good cause justifying discovery. (CCP §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and facts justifying discovery. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Once good cause is established, the responding party has the burden to justify any objections. (*Ibid.*)

The only RFP response currently in dispute is the response to RFP No. 43 which seeks all emails containing the keywords “Carissa” or “Carrera” in the email accounts of several employees. The District indicates that it is in the process of producing the emails in PDF form on a rolling basis. Plaintiff argues that the documents must be produced in native form rather than PDF. Pursuant to CCP § 2031.030(a)(2), “[a] party demanding inspection, copying, testing, or sampling of electronically stored information may specify the form or forms in which each type of electronically stored information is to be produced.” Here, the RFP specifies that for all documents maintained in an Outlook or “pst” file, please drag and drop into a file in order to maintain metadata rather than printing to a PDF. The District did not object to this form of production. As such, the District is ordered to provide a supplemental response and produce documents in their native format.

Plaintiff's Motion to Compel Defendant Coachella Valley Unified School District Further Responses to Request for Production, Set One, GRANTED.

Defendant CVUSD to provide verified, code compliant responses and documents, without objection, to Request for Production, Set One within 45 days.